

then it seems to be established upon the authority of several cases that he *may* dispose of the chattel in payment of his own debt, for as soon as the debts and legacies of the testator have been discharged, the property is the executor's; and how is a purchaser to ascertain, but from the mouth of the executor, whether such prior liabilities upon the estate have been fully satisfied?

*** Where the executor is specific legatee jointly with [*480] another, or subject to a charge.**—But if the executor is specific or residuary legatee, *jointly with others, or subject to certain charges under the will*, then he has no power by himself to offer the chattel in payment of his own debt. For in what character does the executor sell? It must be either as executor or as legatee: not as executor, for then he cannot pay his own debt with the testator's assets; and not as legatee, for he is not exclusively such, but only jointly with others, or subject to certain charges. The creditor therefore cannot deal for the chattel without the concurrence of the co-legatees, or of the other persons jointly entitled (a). And the *mere representation* by the executor that he is absolute owner under the will is no protection, for common prudence requires that the purchaser should look to the will himself and ascertain the fact; and if he neglect this precaution, and assume the executor's veracity, he must incur the hazard of the executor's falsehood (b).

Express notice that debts not paid.—The executor in his character of specific or residuary legatee cannot pay or secure the debt of his own creditor out of the testator's assets, if such creditor have *express* notice that any debt of the testator still remains unsatisfied (c).

γ. Sale by executor for other private purposes.—If the executor sell or mortgage for money either advanced at the time or to be advanced, the dealing *primâ facie* is in a due course of administration (d). “Where,” observed Sir W.

(a) *Bonney v. Ridgard*, 1 Cox. 145; *Hill v. Simpson*, 7 Ves. 152, see 170; and see *Haynes v. Forshaw*, 11 Hare, 93.

(b) *Hill v. Simpson*, 7 Ves. 152, see 170.

(c) See *Nugent v. Gifford*, 1 Atk. 464; *Whale v. Booth*, 4 T. R. 625, note (a); *M'Leod v. Drummond*, 17 Ves. 163.

(d) *M'Leod v. Drummond*, 17 Ves. 155, per Lord Eldon.